



Notification Waiver Determination

Australian Venue Co – Assets of Riverland Bar, The Boatbuilders Yard and General Assembly

Acquisition	AVC Operations Pty Limited (AVC) applied for a notification waiver in respect of its proposed acquisition of substantially all of the assets of three licensed hospitality businesses in Victoria, being: i) the business trading as Riverland Bar (Riverland Bar), ii) the business trading as The Boatbuilders Yard (The Boatbuilders Yard), and iii) the business trading as the General Assembly (General Assembly) (together, the Targets), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	27 August 2026

Parties to the Acquisition	The acquirer, AVC, operates over 200 licensed venues throughout Australia and New Zealand, primarily pubs, as well as some bars, clubs and licensed restaurants. AVC's venues are individually branded and are mostly located in inner-city and metropolitan areas, offering a range of products and services including food, alcoholic and non-alcoholic beverages, function rooms, live entertainment and gaming facilities. The targets, Riverland Bar, The Boatbuilders Yard and General Assembly, are associated with the Riverland Group, a retail hospitality group that operates licensed venues across Victoria (primarily in Melbourne) as well as one business in South Australia, comprising primarily pubs, bars and licensed restaurants. The parties both supply retail hospitality services in metropolitan Melbourne.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition: a. the parties combined share in the supply of dining and on-premises liquor services in the local areas surrounding the Targets is low

	b. there are alternative venues that supply dining and liquor for on-site consumption in the local areas surrounding the Targets and the in the broader metropolitan Melbourne area. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act